

25STCV09083 25STCV09083

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 20, 2026

CASE NUMBER

25STCV09083

MOTION

Special Motion to Strike

MOVING PARTY

Cross-Defendant

Jonathan Paley

OPPOSING PARTIES

Cross-Complainants Marina Grasic and Jan Korbelin

MOTION

Plaintiff

California FAIR Plan Association ("Plaintiff") initiated this action by filing a complaint in interpleader, which named Defendants Jan Korbelen and Marina Grasic (collectively, "Defendants") and Jonathan Paley ("Paley") as claimants concerning the proceeds from an insurance policy.

Defendants cross-complained against Paley. Paley filed this special motion to strike the second, third, and fourth causes of action in the cross-complaint which have been pled as civil extortion, intentional interference with contractual relations, and intentional infliction of emotional distress, respectively.

Defendants oppose the motion.

ANALYSIS

In ruling on a defendant's special motion to strike, the trial court uses a two-step process. First, the defendant must show the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech under the United States or California Constitutions in connection with a public issue. (Code Civ. Proc., § 425.16, subd. (b)(1).) If the defendant carries that burden, the burden shifts to the plaintiff to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(3).)

In the instant case, Defendants allege Paley "did not have a legitimate claim to the insurance proceeds payouts" from Plaintiff but, nonetheless, sent a letter to Plaintiff, which accused Plaintiff of "'aiding and abetting' the alleged criminal activities" of Defendants (see, e.g., Cross-Complaint, ¶ 19), and Plaintiff filed this interpleader action as a result (*id.*, ¶ 21). Paley argues these allegations are based on statements "made in connection with an issue under consideration or review by a . . . judicial body . . .," and they are, therefore, subject to a special motion to strike. (Code Civ. Proc., § 425.16, subd. (e)(2).)

For purposes of a special motion to strike, a statement is "in connection with" litigation if it "bears

some relation" to substantive issues in the litigation and is directed at persons having some interest in the litigation. (Contemporary Services Corp. v. Staff Pro Inc. (2007) 152 Cal.App.4th 1043, 1055, internal quotations omitted.) A statement made in connection with litigation contemplated in good faith is under consideration or review by a judicial body for purposes of a special motion to strike. (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1262-1264.) As such, Paley's letter to Plaintiff was in connection with litigation, even though Plaintiff had not yet filed this action. Thus, Paley has met his burden to show the second, third, and fourth causes of action in Defendants' cross-complaint falls within the special motion to strike framework. Consequently, Paley has shifted the burden to Defendants to show a probability of prevailing on their second, third, and fourth causes of action.

In opposition, while citing Flatley v. Mauro (2006) 39 Cal.4th 299 (Flatley), Defendants argue Paley's conduct was unlawful and therefore does not fall within a special motion to strike. Activity the defendant concedes was illegal or the evidence before the Court demonstrates is illegal as a matter of law does not fall within the scope of a special motion to strike. (City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 424.) However, such conduct must be criminal not just a violation of a statute or common law standard. (See Mendoza v. ADP Screening & Selection Services, Inc. (2010) 182 Cal.App.4th 1644, 1654 [Court of Appeal made clear Flatley is not to be interpreted so that a party is provided "a tool for avoiding the application of the ant-SLAPP statute merely by showing any statutory violation"].)

Second Cause of Action

In this regard, Defendants contend Paley's letter to Plaintiff constituted criminal extortion. Pursuant to Penal Code section 518, subdivision (a), as relevant to the instant action, extortion is obtaining property or other consideration from another with that person's consent, where a wrongful use of force or fear induced the consent. Consideration is anything of value. (Pen. Code, § 518, subd. (b).)

As an initial matter, if Paley's letter constituted extortion at all, it was extortion of

Plaintiff, not Defendants. Furthermore, there is no evidence before the Court Plaintiff gave up anything of value because of Paley's letter. Instead, Plaintiff filed this interpleader action, which did not meaningfully change Plaintiff's position with respect to the insurance proceeds. From Plaintiff's perspective, Plaintiff's interpleader of the insurance proceeds does not differ significantly from direct payment of the proceeds to Defendants. Accordingly, Defendants fail to show Paley's conduct was unlawful as a matter of law such that it does not fall within the special motion to strike framework.

Defendants also argue the litigation privilege does not bar their claims. The litigation privilege "applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (Jacob B. v. County of Shasta (2007) 40 Cal.4th 948, 955, internal quotations omitted.) The litigation privilege applies to prelawsuit demands. (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241 (Action Apartment); Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1095-1096.) Defendants argue the litigation privilege does not apply because Paley's communications did not relate to "litigation that is contemplated in good faith and under serious consideration." (Action Apartment, supra, 41 Cal.4th at p. 1251.) The litigation privilege does not attach to communications that are "merely a negotiating tactic and not a serious proposal made in good faith contemplation of going to court." (Edwards v. Centex Real Estate Corp. (1997) 53 Cal.App.4th 15, 35.)

In this context, Defendants argue Paley's letter was not offered in good faith because "he held no enforceable judgment." (Opposition, p. 16.) However, Defendants misconstrue the good faith requirement. "The good faith inquiry is not a question of whether the statement was made with a good faith belief in its truth, but rather, whether the statement was made with a good faith intention to bring a lawsuit." (Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 683.)

Defendants advance no evidence to suggest Paley did not contemplate litigation against Plaintiff at the time Paley sent the letter. Accordingly, Defendants fail to show the litigation privilege does not bar their claims.

Defendants also

argue the litigation privilege does not apply because Paley's letter referenced Plaintiff "aiding and abetting" Defendants.

"[T]he litigation privilege d[oes] not apply where an attorney threatens or misrepresents the existence of criminal proceedings." (Knoell v. Petrovich (1999) 76 Cal.App.4th 164, 170.) According to Defendants,

aiding and abetting necessarily refers to criminal proceedings. Defendants are incorrect. Aiding and abetting is also a basis for civil

liability. (See, e.g., Das v. Bank of

America, N.A. (2010) 186 Cal.App.4th 727, 744 [court noted bank may be held liable as an aider and abettor of tort regarding elder abuse].)

Defendants further

contend their cause of action for extortion has merit. As set forth above, Defendants are incorrect. Defendants have not shown

Paley extorted Plaintiff, let alone Defendants.

Accordingly, Defendants have not satisfied their burden by showing they can prevail on their cause of action for extortion.

Third Cause of Action

Defendants argue

their cause of action for intentional interference with contract has merit. To state this claim, Defendants

must allege the existence of a valid contract between Defendants and a third party, Paley's knowledge of the contract, Paley intentionally undertook to disrupt the contractual relationship, and the contractual relationship was disrupted to the detriment of Defendants. (Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148.)

The cause of action for intentional interference with contract is premised on the letter Paley sent Plaintiff.

(Cross-Complaint, ¶ 54.) As set

forth above, the litigation privilege applies to the letter such that it cannot be the basis for Defendants' claims. Accordingly, Defendants fail to

meet their burden to show Defendants can prevail on the cause of action for intentional interference with contract.

Fourth Cause of Action

Likewise, Defendants

fail to show they can prevail on their cause of action for intentional

infliction of emotional distress because the claim is predicated on the letter

Paley sent Plaintiff, to which the litigation privilege applies. (Cross-Complaint, ¶ 61.)

CONCLUSION AND ORDER

Accordingly, the

special motion to strike Defendants' second, third, and fourth causes of action

is granted.

Paley is ordered

to provide notice of the Court's ruling and to file proof of service of same.